

24NNCV06367 24NNCV06367

County: los-angeles

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Case Number: 24NNCV06367 Hearing Date: September 11, 2026 Dept: A

TENTATIVE RULING

SEPTEMBER 11, 2026

MOTION FOR TERMINATING SANCTIONS

Los

Angeles Superior Court Case # 24NNCV06367

MP: Defendant

Ashot Sargsyan

RP: No

opposition received

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at

BurDeptA@LACourt.ca.gov or by telephone at (818) 260-8412.

ALLEGATIONS:

Garnik Sahakian ("Plaintiff") alleges that on August 18, 2023, he was involved in a motor vehicle collision with Ashot Sargsyan ("Defendant"), causing Plaintiff to suffer injuries.

The complaint, filed December 6, 2024, alleges: (1) Motor Vehicle Negligence; and (2) General Negligence.

MOTIONS ON CALENDAR:

On May 18, 2026, Defendant filed a Motion for Terminating Sanctions and Monetary Sanctions. The Court is not in receipt of an opposition brief. The Court notes that, pursuant to C.R.C. Rule 8.54(c), a failure to oppose a motion may be deemed consent to its being granted.

LEGAL STANDARD:

C.C.P. § 2023.030 permits the Court to impose terminating sanctions for discovery misuses, which are defined by C.C.P. § 2023.010 to include the failure to respond to an authorized method of discovery and the failure to comply with a Court discovery order.

The Court weighs the following factors when considering the present motion: (1) defendants' conduct, indicating whether their actions were willful; (2) the detriment to the party seeking discovery; and (3) the number of formal and informal unsuccessful attempts to obtain discovery. (Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1246.) Ultimate discovery sanctions are justified where there is a willful discovery order violation, a history of abuse, and evidence showing that less severe sanctions would not produce compliance with discovery rules. (Van Sickle v. Gilbert (2011) 196 Cal.App.4th 1495, 1516.)

RELEVANT BACKGROUND:

On November 12, 2025, Defendant filed two motions to compel Plaintiff's initial responses for: (1) Form Interrogatories ("FROG"), set one and Special Interrogatories ("SROG"), set one; and (2) Request for Production of Documents ("RPD"), set

one. The motions were served on Plaintiff's then-counsel on November 12, 2025. The Order Granting Attorney's Motion to be Relieved as Counsel indicated that a hearing on the motions to compel was scheduled for February 27, 2026.

On November 14, 2025, the Court granted Plaintiff's then-counsel's motion to be relieved as counsel. On December 2, 2025, Plaintiff's then-counsel filed a Proof of Service – Civil, showing that the Order Granting Attorney's Motion to be Relieved as Counsel was served by mail on Plaintiff at SBCSD High Desert Jail on December 2, 2025, such that Plaintiff was on notice of the February 27, 2026 hearing. Plaintiff is currently a self-represented litigant.

On February 27, 2026, the Court granted Defendant's motions to compel Plaintiff's initial responses to the FROG/SROG and RPD, ordering responses within 30 days of notice of the order. The Court also imposed \$620 in sanctions, payable within 30 days of the order. The Court ordered Defendant to file a proof of service indicating that Defendant served Plaintiff with the order, as Plaintiff appeared to be incarcerated.

On March 5, 2026, Defendant filed a Notice of Ruling of the Court's February 27, 2026 order, showing that Defendant served Plaintiff by mail at the High Desert Detention Center.

ANALYSIS:

A.

Terminating Sanctions

On February 27, 2026, the Court granted Defendant's motion to compel discovery responses. Plaintiff was ordered to provide responses within 30 days of notice of the Court's order. Defendant mailed notice of the order on March 5, 2026. On April 7, 2026, defense counsel Nageen C. Jalali states that Defendant attempted to contact Plaintiff by sending him a letter, requesting responses. (Jalali Decl., ¶4, Ex. C.) Defense counsel states that while they received some calls from someone they can only assume

was Plaintiff calling them from prison, Plaintiff was unable to speak long enough for defense counsel to talk to him and defense counsel was unable to contact Plaintiff except by letter.

(Mot. at p.6.) Defendant asserts

that from what little Plaintiff was able to provide, he stated that he did not know what was going on and directed Defendant to speak with his lawyer. (Id.)

However, as noted above, Plaintiff's counsel withdrew from the case and it does not appear that Plaintiff has retained new counsel.

Defendant

contends that as of the date of filing the motion on May 18, 2026, Plaintiff has not yet provided responses or paid the monetary sanctions.

Based on

Plaintiff's failure to comply with the Court's order, lack of opposition to the motion, and failure to provide responses despite Defendant's attempts to contact Plaintiff, it appears that Plaintiff has abandoned this case. In light of Plaintiff's conduct, there is no reason to believe that any lesser issue/evidentiary sanctions will force him to comply with his discovery obligations.

Accordingly, the motion for terminating sanctions is granted.

B.

Monetary Sanctions

Under California law, a discovery order cannot go further than is necessary to accomplish the purpose of discovery. (Newland v. Superior Court (1995) 40 Cal. App. 4th 608, 613.) The purpose of discovery sanctions is to prevent abuse of the discovery process and correct the problem presented. (McGinty v. Superior Court (1994) 26 Cal. App. 4th 204, 210.)

Defendant seeks \$1,350 for having to file this motion (= [2.5 hours on the motion] + [3 anticipated hours to review and reply to the opposition and attend the hearing] at \$220/hour). (Jalali Decl., ¶19.)

There is no reason to grant monetary sanctions in addition to terminating sanctions, since such an award would not advance the purpose of discovery sanctions any further than the termination of the case. Therefore, the request for additional monetary sanctions is denied.

The Court notes that

the granting of terminating sanctions is justified as there are no lesser sanctions which have been successful; however, given that Plaintiff is incarcerated and his counsel withdrew, the Court believes that dismissing the complaint without prejudice versus with prejudice is in the interest of justice.

RULING:

In the event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendant's Motion for Terminating Sanctions and Monetary Sanctions came on regularly for hearing on September 11, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE MOTION FOR TERMINATING
SANCTIONS IS GRANTED. THE REQUEST FOR
MONETARY SANCTIONS IS DENIED. THE COURT
DISMISSES THE COMPLAINT WITHOUT PREJUDICE.

DEFENDANT TO PROVIDE NOTICE.

IT IS SO ORDERED.